

2:00 PM

LINE 4

24-CLJ-01851

TD BANK USA, N.A VS. KATHREEN IRIS MAYE S. MENDOZA

TD BANK USA, N.A
KATHREEN IRIS MAYE S. MENDOZA

ALEXANDER BALZER CARR
PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff TD Bank, N.A.’ motion for order that matters in request for admission of truth of facts be deemed admitted, set not 1 for failure to provide proper notice to defendant of the hearing.

In the notice of motion, plaintiff put the date of July 29, 2026 as the hearing date. Then the clerk’s office changed the hearing date to September 8, 2026. The court file shows a proof of service filed and served on June 5, 2026 of the motion. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

Since plaintiff states it is submitting on the papers without an appearance pursuant to California Rules of Court, rule 3.1304(c), plaintiff does not have an opportunity to show that proper notice was provided.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-06341

MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT
ANDREW G WATTERS

MICHAEL TSIVYAN
JERAMY STEPHEN STONE

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF MOJTABA TAIEBAT

CONTINUED FROM 6/23/2026

TENTATIVE RULING:

The court continued the hearing from June 23, 2026 until September 8, 2026 because of a pending August 4, 2026 demurrer and the potential prejudice to plaintiff, which was one of plaintiff's request.

The demurrer has been resolved and the only pending hearing is a case management conference on November 4, 2026. Thus, the court's concerns regarding prejudice to plaintiff no longer exist.

Although plaintiff raises other objections to the withdrawal of Tsivyan, the court cannot order an attorney to take certain litigation steps. These requests show a break-down of communication. The court finds good cause to grant the motion based upon Tsivyan's declaration and there is no prejudice to plaintiff.

Therefore the court GRANTS the motion of Michael Tsivyan to be relieved of counsel for plaintiff.

The withdrawal does not become effective until the filing of the proof of service of the signed order upon the client and all other notices.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action and plaintiff, as required by law and the California Rules of Court.
